

IN THE [COURT CAPTION TO BE CONFORMED]

[PLAINTIFF], Plaintiff, v. [DEFENDANT], Defendant. Case No. []

DEFENDANT'S RESPONSES AND OBJECTIONS TO PLAINTIFF'S SECOND SET OF REQUESTS FOR PRODUCTION

Pursuant to the applicable rules of civil procedure and the Court's scheduling order, Defendant hereby responds and objects to Plaintiff's Second Set of Requests for Production (the "Second Request"), served on the date reflected in the certificate of service accompanying the Second Request. Defendant's investigation and discovery efforts are ongoing, and Defendant reserves the right to supplement these responses as permitted by the rules and any governing order.

Preliminary Statement

These responses are limited to the two subject-matter categories as to which the parties narrowed the Second Request: (1) requests directed to Plaintiff's estoppel theory, and (2) requests directed to jurisdiction and Defendant's corporate good standing. Defendant's agreement to respond within this narrowed scope, and on the compressed schedule described below, does not waive, and should not be construed as a waiver of, any objection Defendant has raised or preserves herein, including as to relevance, proportionality, privilege, or burden, as to any request not encompassed by this narrowing.

General Objections

- 1 Defendant objects to the Second Request to the extent it seeks information protected by the attorney-client privilege, the work-product doctrine, or any other applicable privilege or immunity. Any inadvertent production of privileged material shall not constitute a waiver, and Defendant reserves all rights under Federal Rule of Evidence 502(b) and any corresponding local rule or protective order.
- 2 Defendant objects to the Second Request to the extent it purports to impose obligations beyond those set forth in the applicable rules of civil procedure or any governing scheduling or discovery order.
- 3 Defendant objects to the definitions and instructions accompanying the Second Request to the extent they are overbroad, unduly burdensome, or seek to expand Defendant's discovery obligations beyond what the rules require.
- 4 These General Objections are incorporated into each specific response below, whether or not separately restated.

Requests and Responses – Estoppel

Request No. 1

All documents concerning any representation by Defendant on which Plaintiff claims to have relied in support of its estoppel theory as pleaded in the Complaint.

Response: Defendant objects to this Request to the extent it calls for a legal conclusion regarding the elements of estoppel and to the extent it seeks documents protected by privilege or work-product immunity. Subject to and without waiving the foregoing and the General Objections, Defendant will produce non-privileged, responsive documents within its possession, custody, or control concerning the specific representations identified in Plaintiff's estoppel allegations, to the extent such documents exist and can be located after a reasonable search.

Request No. 2

All communications between Defendant and Plaintiff concerning the subject matter of the alleged representations described in Request No. 1.

Response: Defendant objects to the extent this Request is duplicative of Request No. 1 and to the extent it seeks privileged or work-product protected material. Subject to and without waiving the foregoing, Defendant will produce non-privileged, responsive communications located after a reasonable search of custodians and repositories identified as relevant to the estoppel category, consistent with the production plan provided to Plaintiff's counsel.

Request No. 3

All documents concerning Plaintiff's alleged reliance and any change in position by Plaintiff in connection with the representations described in Request No. 1.

Response: Defendant objects that this Request seeks documents equally or more accessible to Plaintiff, as it concerns Plaintiff's own conduct and internal records of reliance. Defendant further objects to the extent the Request calls for speculation as to Plaintiff's undisclosed internal deliberations. Subject to and without waiving the foregoing, Defendant will produce non-privileged documents in its possession, custody, or control that are responsive and were located after a reasonable search.

Requests and Responses – Jurisdiction and Good Standing

Request No. 4

All documents concerning Defendant's state of incorporation, registered agent, and corporate good standing in each jurisdiction in which Defendant conducts business relevant to the claims in this action.

Response: Defendant objects to the extent this Request seeks documents concerning jurisdictions with no connection to the transactions or occurrences at issue and is therefore disproportionate to the needs of the case. Subject to and without waiving the foregoing, Defendant will produce its certificate of good standing and corresponding state filings for its state of incorporation and for each jurisdiction in which

Defendant transacted the business giving rise to Plaintiff's claims.

Request No. 5

All documents concerning any basis for personal jurisdiction over Defendant in this forum, including documents concerning Defendant's contacts with the forum state.

Response: Defendant objects to this Request as calling for a legal conclusion and as seeking documents beyond the scope of the narrowed Second Request to the extent it reaches contacts unrelated to the transactions at issue. Subject to and without waiving the foregoing, Defendant will produce non-privileged documents concerning its business activities and contacts with the forum state that relate to the transactions or occurrences alleged in the Complaint.

Request No. 6

All documents concerning any lapse, suspension, or reinstatement of Defendant's corporate status in any jurisdiction during the period relevant to the claims in this action.

Response: Defendant objects to the temporal and jurisdictional scope of this Request as disproportionate. Subject to and without waiving the foregoing, Defendant will produce responsive, non-privileged documents concerning any lapse, suspension, or reinstatement of its corporate status in its state of incorporation and in jurisdictions relevant to the claims, during the period identified in the operative scheduling order.

Reservation of Rights

Defendant reserves the right to supplement, amend, or correct these responses as its investigation continues, consistent with its obligations under the applicable rules. Nothing herein shall be construed as a waiver of any objection not expressly addressed above.

Open Items

- Section I integration (Bates range and discovery-cutoff pincites) and timeline integration are complete and reflected in the responses above.
- Production against the estoppel and jurisdiction/good-standing categories proceeds on the confirmed reply deadline (a week from Monday, 14 days from Thursday's filing).
- Any related motion practice concerning this Second Request requires a live meet-and-confer beforehand; this requirement is tracked internally and has not been raised in writing with opposing counsel.